

3.	25CV3075	PATEL et al v. ARVO SOLAR et al
Set Aside Default		

Motion to Set Aside Default of Jason Craine

Defendant Jason Craine filed this motion requesting the Court to set aside the default entered on February 27, 2026.

Craine was served the Summons and Complaint by mail on December 17, 2025, and he returned a signed Notice of Acknowledgement of Receipt on January 15, 2026. On February 27, 2026, Plaintiffs filed a Request for Entry of Default as to Defendant Craine, for a judgment in the amount of \$442,702.70.

Craine seeks to set aside the default pursuant to Code of Civil Procedure § 473(b), for mistake, inadvertence, surprise, or excusable neglect.

Code of Civil Procedure § 473(b) provides, in pertinent part:

The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.

Craine was served with the Summons and First Amended Complaint by mail on December 17, 2025, along with a Notice of Acknowledgment of Receipt Form. This manner of service would not have been adequate unless the Notice of Acknowledgment of Receipt form as signed and returned, and so Plaintiff's counsel emailed Craine on January 15, 2026, "stating the legal consequences of failing to acknowledge service." Declaration of Howard Garfield, dated April 3, 2026, ("Garfield Declaration"), para. 2 and Exhibit B. The legal consequences referenced by counsel were that Plaintiff would move for service by publication and request reimbursement of those "significant costs of publication and any additional process server fees" from the Court. Id. Craine signed and returned the form, without being aware that the signature would start the clock running the deadline for filing an Answer in the case. Declaration of Jason Craine, dated March 16, 2026, ("Craine Declaration"), para. 4. At the time that he signed the form in mid-January, 2026, he understood from the owner of co-Defendant Phillip Horton, owner of co-Defendant Arvo Solar, that that Defendant Arvio Solar's 's Answer would also be filed on behalf of Craine. Id. at para. 3.

Soon after he returned the Notice of Acknowledgement Arvo Solar informed Craine that he would not be represented by Arvo's counsel, due to a potential conflict of interest. Accordingly, he sought legal counsel, but had not yet retained an attorney when Plaintiff filed for a default against him as soon as the time had run for filing an Answer.

The grounds for the motion are 1) Craine's mistake in not understanding that signing the Notice of Acknowledgement form created a deadline for filing an Answer within 30 days of signing, and 2) reasonable reliance on his co-Defendants' representation that he would be included in the Answer that they filed until their position changed just before his own Answer would be due.

Plaintiff argues that Craine serves as an agent for service of process for other entities and so should be charged with knowledge of the deadline to file an Answer, and that a Notice of Acknowledgement form has the same legal effect as service. However, serving as agent for service of process for business entity does not convert a person into a litigation attorney or require any knowledge of the substance of the Code of Civil Procedure.

Plaintiff argues that the email exchange in which Craine was informed of applicable statutes and threatened with legal costs of service if he did not return the form constituted notice of the deadline to Answer, but that email exchange does not cite statutes relevant to responsive pleadings or otherwise address the deadline to file an Answer. Further, at that time Craine of that correspondence thought he would be represented by Arvo's counsel.

[B]ecause the law strongly favors trial and disposition on the merits, any doubts in applying section 473 must be resolved in favor of the party seeking relief from default (*Waite v. Southern Pacific Co.* (1923) 192 Cal. 467, 470-471 [221 P. 204]; *Carli v. Superior Court* (1984) 152 Cal.App.3d 1095, 1099 [199 Cal.Rptr. 583] [in the context of deemed admissions § 473 should be applied liberally "so cases can be tried on the merits"]; *Flores v. Board of Supervisors, supra*, 13 Cal.App.3d at p. 483.) . . . A motion seeking such relief lies within the sound discretion of the trial court, and the trial court's decision will not be overturned absent an abuse of discretion. (*Weitz v. Yankosky* (1966) 63 Cal.2d 849, 854 [48 Cal.Rptr. 620, 409 P.2d 700]; *Martin v. Cook* (1977) 68 Cal.App.3d 799, 807 [137 Cal.Rptr. 434].)

Elston v. City of Turlock, 38 Cal. 3d 227, 233 (1985).

Motion to Set Aside Default of Golden Gate Electric Service Partnership, Golden Gate Electric Service, Inc., Joel Rosas Martinez and Roberto Diaz Villanueva

On April 27, 2026, Plaintiffs filed a Request for Dismissal with Prejudice as to all of the above-named Defendants, rendering their motion to set aside default moot.

TENTATIVE RULING #3: DEFENDANT'S MOTION TO SET ASIDE THE DEFAULT AS TO DEFENDANT JASON CRAINE IS GRANTED. THE MOTION TO SET ASIDE THE DEFAULT AS TO DEFENDANTS GOLDEN GATE ELECTRIC SERVICE PARTNERSHIP, GOLDEN GATE ELECTRIC SERVICE, INC., JOEL ROSAS MARTINEZ AND ROBERTO DIAZ VILLANUEVA IS MOOT AND IS TAKEN OFF CALENDAR.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.